IN THE CIRCUIT COURT OF _____ , MISSOURI
(County where court is located. City of Saint Louis is considered a county.)

In re the Marriage of:

_____ _____ _____ _____
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*
Petitioner, *(Enter your full legal name above)*

-and-

_____ _____ _____ _____
(First Name) *(Middle Name)* *(Last Name)* *(Jr./Sr./III)*
Respondent. *(Enter your spouse's full legal name above)*

Case Number _____
(Assigned when case is filed)

Division Number _____
(Assigned when case is filed)

Statement of Property and Debt and Proposed Separation Agreement (For use in Dissolution of Marriage Cases)

This form shall be filled out by the Petitioner who filed the *Petition for Dissolution of Marriage*.

What does this form cover?

There are two parts to this document. Part One is your division of property and debt. You must list all of your marital and nonmarital property and marital debt on one of the four tables. Part Two pertains to spousal support or "maintenance." This document does not have anything to do with child support or custody. Issues addressing child support and custody are contained in a parenting plan.

What is a Separation Agreement?

It is an agreement in which you and your spouse agree to a distribution of property and debt and to provisions concerning maintenance and attorney's fees. If both you and your spouse sign this document, it is called a "Separation Agreement." It does not include provisions for child custody and child support.

Even if both you and your spouse have signed the agreement, the court is not bound by it. If the court finds that your agreement is "unconscionable" or does not divide all property and marital debt, it will not be approved by the court. The court can divide the property in any manner it considers fair, and it may or may not order maintenance to be paid.

How do I complete Part One of this Form?

You must list all of your marital and nonmarital property and marital debt on one of the four tables.

Use a separate row for each item of property or debt. Make sure you enter "Not Applicable" or "N/A" in each box under "Item of Property" or "Item of Debt" that you do not fill. This is very important because someone could alter this document after you have signed it. Keep a copy of this document after you have signed it.

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Part One - Division of Property and Debt

If you answer "Yes" to any of the following questions, you must list each item of property in either Table 1 or Table 2 on the following pages.

Property Owned by Petitioner (either alone or with anyone else) *(Check "Yes" or "No" for each of the following questions)*

Does Petitioner own a house, condominium or other real estate?	☐ Yes ☐ No
You should attach a copy of the deed for each item of real estate to this form.	
Does Petitioner own a car, truck or motorcycle?	☐ Yes ☐ No
Does Petitioner own a mobile home, trailer, boat or airplane?	☐ Yes ☐ No
Does Petitioner have any bank accounts?	☐ Yes ☐ No
Does Petitioner have any right to receive any pension or retirement benefits other than Social Security?	☐ Yes ☐ No
Does Petitioner have an IRA or 401(k) or other retirement account?	☐ Yes ☐ No
Does Petitioner have any furniture, appliances or other household goods worth more than $100?	☐ Yes ☐ No
Does Petitioner have any jewelry, clothing or other personal items worth more than $100?	☐ Yes ☐ No
Does Petitioner own a business?	☐ Yes ☐ No
Does Petitioner own any stocks or bond?	☐ Yes ☐ No
Does Petitioner have any life insurance that could be cashed in?	☐ Yes ☐ No
Does anyone owe Petitioner any money?	☐ Yes ☐ No
Does Petitioner have any lawsuits against anyone?	☐ Yes ☐ No
Does Petitioner have any farm equipment, animals or crops?	☐ Yes ☐ No
Does Petitioner have any interest in any trusts?	☐ Yes ☐ No
Does Petitioner have any other asset or property?	☐ Yes ☐ No

Property Owned by Respondent (either alone or with anyone else) *(Check "Yes" or "No" for each of the following questions)*

Does Respondent own a house, condominium or other real estate?	☐ Yes ☐ No
You should attach a copy of the deed for each item of real estate to this form.	
Does Respondent own a car, truck or motorcycle?	☐ Yes ☐ No
Does Respondent own a mobile home, trailer, boat or airplane?	☐ Yes ☐ No
Does Respondent have any bank accounts?	☐ Yes ☐ No
Does Respondent have any right to receive any pension or retirement benefits other than Social Security?	☐ Yes ☐ No
Does Respondent have an IRA or 401(k) or other retirement account?	☐ Yes ☐ No
Does Respondent have any furniture, appliances or other household goods worth more than $100?	☐ Yes ☐ No
Does Respondent have any jewelry, clothing or other personal items worth more than $100?	☐ Yes ☐ No
Does Respondent own a business?	☐ Yes ☐ No
Does Respondent own any stocks or bond?	☐ Yes ☐ No
Does Respondent have any life insurance that could be cashed in?	☐ Yes ☐ No
Does anyone owe Respondent any money?	☐ Yes ☐ No
Does Respondent have any lawsuits against anyone?	☐ Yes ☐ No
Does Respondent have any farm equipment, animals or crops?	☐ Yes ☐ No
Does Respondent have any interest in any trusts?	☐ Yes ☐ No
Does Respondent have any other asset or property?	☐ Yes ☐ No

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Table 1 - Property to be Awarded to Petitioner *(Check one box in each column for property listed)*

The following property is to become the sole and separate property of **Petitioner**.

Item of Property	Present Fair Market Value	Is there an amount owed on this property?	Is this marital or nonmarital property?	Party with possession of this property?
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other

Table 2 - Property to be Awarded to Respondent *(Check one box in each column for property listed)*

The following property is to become the sole and separate property of **Respondent**.

Item of Property	Present Fair Market Value	Is there an amount owed on this property?	Is this marital or nonmarital property?	Party with possession of this property?
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other
	(Do not deduct amount owed from this value)	☐ Yes - List debt in Tables 3 or 4. ☐ No	☐ Marital ☐ Nonmarital ☐ Both	☐ Petitioner ☐ Respondent ☐ Other

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If you answer "Yes" to any of the following questions, you must list each item of debt in either Table 3 or Table 4 on the following pages.

Debts that Petitioner Owes (either alone or with anyone else) *(Check "Yes" or "No" for each of the following questions)*

Is Petitioner currently in a bankruptcy proceeding? (Chapter 7 or Chapter 13)	☐ Yes	☐ No
Does Petitioner owe a mortgage on a house or condominium or land?	☐ Yes	☐ No
Does Petitioner owe money on a car?	☐ Yes	☐ No
Does Petitioner owe money on any credit cards?	☐ Yes	☐ No
Does Petitioner owe any money to any family or friends?	☐ Yes	☐ No
Does Petitioner owe any medical or dental bills?	☐ Yes	☐ No
Does Petitioner owe any student loans?	☐ Yes	☐ No
Does Petitioner owe any other debts?	☐ Yes	☐ No

Debts that Respondent Owes (either alone or with anyone else) *(Check "Yes" or "No" for each of the following questions)*

Is Respondent currently in a bankruptcy proceeding? (Chapter 7 or Chapter 13)	☐ Yes	☐ No
Does Respondent owe a mortgage on a house or condominium or land?	☐ Yes	☐ No
Does Respondent owe money on a car?	☐ Yes	☐ No
Does Respondent owe money on any credit cards?	☐ Yes	☐ No
Does Respondent owe any money to any family or friends?	☐ Yes	☐ No
Does Respondent owe any medical or dental bills?	☐ Yes	☐ No
Does Respondent owe any student loans?	☐ Yes	☐ No
Does Respondent owe any other debts?	☐ Yes	☐ No

What debts should I list on this form?

All debts owed by you and/or your spouse must be listed. You should list all loans from any individual, bank, credit card company, credit union, savings and loan association or other lending institution. Include all debts owed by either you or your spouse. Make sure to list all credit cards and any amounts owed pursuant to any bankruptcy or other repayment plans.

Debts that the Petitioner should pay are to be listed in Table 3 and debts that the Respondent should pay are to be listed in Table 4.

What does "security" mean?

The mortgage on a home is traditionally secured by the home. When you finance the purchase of an automobile, the company that loans you the money is listed on the title to the automobile. They too have a security interest in your car. Usually, a debt is secured by an item of property if the person to whom you owe the money can take the item of property if you fail to pay the debt. The schedules of debt ask you to list any security for that debt. You must also list the property that secures the debt under the property listings.

How do you get the other party's name off of this debt?

This agreement does not affect the rights of the person to whom you or your spouse owe the money. They can still collect the money from both you and/or your spouse.

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Table 3 - Debts to be Paid by Petitioner *(Check one box in the last column for each debt listed)*

List all loans from any individual, bank, credit card company, credit union, savings and loan association or other lending institution that are to be paid by **Petitioner**. Petitioner is to indemnify and hold Respondent harmless for all debts listed on Table 3.

The creditor's rights to collect these debts from Respondent are **not** affected without the consent of the creditor. Petitioner is to refinance or obtain the release of any liability of Respondent on all debts listed in Table 3 as soon as reasonably practicable.

Item of Debt (Who is the money owed to?)	**Current Balance**	**Monthly Payment**	**What is the security for this debt, if any?** (This property should be listed in Table 1 or Table 2)	**Marital or Separate Debt**
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both

Table 4 - Debts to be Paid by Respondent *(Check one box in the last column for each debt listed)*

List all loans from any individual, bank, credit card company, credit union, savings and loan association or other lending institution that are to be paid by **Respondent**. Respondent is to indemnify and hold Petitioner harmless for all debts listed on Table 4.

The creditor's rights to collect these debts from Petitioner are **not** affected without the consent of the creditor. Respondent is to refinance or obtain the release of any liability of Petitioner on all debts listed in Table 4 as soon as reasonably practicable.

Item of Debt (Who is the money owed to?)	**Current Balance**	**Monthly Payment**	**What is the security for this debt, if any?** (This property should be listed in Table 1 or Table 2)	**Marital or Separate Debt**
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both
				☐ Marital ☐ Nonmarital ☐ Both

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Part Two - Maintenance and Other Provisions

What is maintenance?

Maintenance is money paid on a regular schedule by one spouse to the other for support after the dissolution of marriage. It may be for a set period of time or it may be for an indefinite period of time. It usually terminates upon the death of either party or the remarriage of the party receiving maintenance unless the parties agree otherwise.

It may or may not be subject to future modification upon a showing of changed circumstances. Maintenance used to be referred to as "alimony."

Maintenance to Petitioner *(Check one of the three boxes)*

☐ The court lacks jurisdiction to enter any orders with respect to maintenance of Petitioner.

☐ No maintenance is to be paid to Petitioner by Respondent. This agreement is not subject to modification.

☐ Respondent shall pay to Petitioner the sum of _____ per month as and for maintenance. Said maintenance ☐ is ☐ is not subject to modification. Said maintenance shall terminate upon the death of either party, the remarriage of Petitioner, or at such earlier time as set forth herein. *(Check "is" or "is not" if you choose this option)*

Maintenance to Respondent *(Check one of the three boxes)*

☐ The court lacks jurisdiction to enter any orders with respect to maintenance of Respondent.

☐ No maintenance is to be paid to Respondent by Petitioner. This agreement is not subject to modification.

☐ Petitioner shall pay to Respondent the sum of _____ per month as and for maintenance. Said maintenance ☐ is ☐ is not subject to modification. Said maintenance shall terminate upon the death of either party, the remarriage of Respondent, or at such earlier time as set forth herein. *(Check "is" or "is not" if you choose this option)*

Income Withholding for Maintenance (If maintenance is to be paid by either party) *(Check one of the two boxes)*

☐ Income withholding shall be prepared by the person receiving maintenance and issued by the circuit clerk upon the effective date of this order.

☐ Income withholding shall not issue for the following reason(s):

Additional Provisions

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Proof of Service on Other Parties

You **must** send (serve) a copy of this document to each of the other parties, or their attorney(s). To obtain service, you may deliver the document by hand; send it by First Class U.S. mail, e-mail or facsimile (fax); or leave it at the office of the party's attorney to be served with a clerk, receptionist or an attorney associated with the attorney to be served.

I certify, under oath that on _____ (date) I have sent/given a copy of this *Statement of Property and Debt and Proposed Separation Agreement* to each of the following parties at the address shown:

Name	Address: U.S. mail/e-mail/fax number

Petitioner - Sign Below in the Presence of a Notary Public

Your *Statement of Property and Debt and Proposed Separation Agreement* is required to be verified in the presence of a notary public.

Petitioner, of lawful age, being duly sworn on his or her oath, states that he or she is the Petitioner named above and that the facts stated in this *Statement of Property and Debt and Proposed Separation Agreement* are true according to his or her best knowledge, information and belief.

▶ _____ _____

(Sign above in the presence of a Notary Public) (*Print your name above)*

The following information must be completed by a notary public.

STATE OF _____)
) SS
COUNTY OF _____)

On this _____ day of _____ , 20____ , before me personally appeared _____ , to me known to be the person described in and who executed the foregoing instrument and acknowledged that he/she executed the same as his/her free act and deed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal in the County and State aforesaid, the day and year first above written.

_____

_____ , Notary Public

_____ County, State of Missouri

My commission expires: _____

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Respondent - Sign Below in the Presence of a Notary Public

Your *Statement of Property and Debt and Proposed Separation Agreement* is required to be verified in the presence of a notary public.

Respondent, of lawful age, being duly sworn on his or her oath, states that he or she is the Respondent named above and that the facts stated in this *Statement of Property and Debt and Proposed Separation Agreement* are true according to his or her best knowledge, information and belief.

▶ _____ _____

(Sign above in the presence of a Notary Public) (*Print your name above)*

The following information must be completed by a notary public.

STATE OF _____)
) SS
COUNTY OF _____)

On this _____ day of _____ , 20____ , before me personally appeared _____ , to me known to be the person described in and who executed the foregoing instrument and acknowledged that he/she executed the same as his/her free act and deed.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal in the County and State aforesaid, the day and year first above written.

_____

_____ , Notary Public

_____ County, State of Missouri

My commission expires: _____

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